

Article 20 in Constitution of India

20. Protection in respect of conviction for offences

(1) No person shall be convicted of any offence except for violation of a law in force at the time of the commission of the act charged as an offence, nor be subjected to a penalty greater than that which might have been inflicted under the law in force at the time of the commission of the offence. (2) No person shall be prosecuted and punished for the same offence more than once. (3) No person accused of any offence shall be compelled to be a witness against himself. **Editorial Comment** - Article 20 of the Indian Constitution safeguards certain rights in criminal proceedings. It provides protection against self-incrimination, double jeopardy, and retrospective punishment.

Article 20(1) prohibits the imposition of retrospective punishment. It states that no person shall be punished for an act that was not an offense at the time it was committed. This provision ensures that individuals cannot be held accountable for actions that were legal when they occurred but were later made illegal by subsequent legislation.

In the landmark judgment, *Kedar Nath v. State of West Bengal* the Supreme Court held that when an act is declared a criminal offense by the legislature and provides penalties for it, such declaration is always prospective and cannot be applied retrospectively as per the provisions of Article 20(1)

However, it is important to note that this clause prohibits only the procedure of sentencing and convicting, not the trial itself. Therefore, a person accused under a particular procedure cannot claim protection under this clause or the doctrine of ex post facto law.

In the case of *Mohan Lal v. State of Rajasthan* involving the Narcotics, Drugs, and Psychotropic Substances Act, the court opined that Article 20 prohibits only conviction and punishment under an ex post facto law, not the trial or prosecution itself. Furthermore, a trial conducted under a different procedure from the one existing at the time of the offense does not fall within the scope of this provision and cannot be deemed unconstitutional.

In another significant judgment, *Maru Ram Etc. v. Union Of India & Anr* (1980 AIR 2147), the Court observed that Article 20(1) also encompasses the principle that penalties for an offense should not be retrospectively increased beyond what existed at the time of the offense.

However, there is an exception to the restriction imposed by this provision. In the case of *Rattan Lal v. The State of Punjab*, the Supreme Court allowed for retrospective application of criminal laws in situations where the issue at hand concerns the reduction of punishment for the said offense.

Article 20(2) prohibits a person from being prosecuted and punished for the same offense more than once. This principle of double jeopardy prevents individuals from being subjected to multiple trials or punishments for the same offense. Once a person has been acquitted or convicted and punished for a particular offense, they cannot be tried or punished again for the same offense.

In the case of Venkataraman v. Union of India, the Supreme Court of India established that this provision deals exclusively with Judicial punishments and provides that no person is prosecuted twice by the judicial authorities. The most crucial landmark judgement came in the case of Maqbool Hussain v. State of Bombay, where the person accused was possessing some amount of gold, which was against *lex loci* at the time and gold was confiscated by the customs authority. And, later when the person was prosecuted before a criminal court, the court was confronted with the question whether this amounts to Double Jeopardy.

But, the Supreme Court observed that departmental proceedings, i.e. by Customs Authority, in this case, doesn't amount to trial by a judicial tribunal, thus the proceedings before the criminal court is not barred in this case and the proceedings can go on. In a nutshell Departmental Proceedings are independent of trial by a judicial court or tribunal.

However, the prosecution may happen if the facts are distinct in subsequent proceedings. Same was established by the Supreme Court of India in case of A.A. Mulla v. State of Maharashtra and was observed that; Article 20 (2) would not be attracted in those cases where the facts are distinct in subsequent offence or punishment.

Article 20(3) ensures that no person accused of an offense shall be compelled to be a witness against themselves. This means that an individual cannot be forced to provide evidence or testimony that may incriminate themselves. It is a fundamental right that protects individuals from being compelled to be witnesses in their own criminal prosecution.

Prohibition against self-incrimination could only be put into effect if the person is accused of a criminal offence. This doctrine could not be invoked for cases other than criminal cases. Also, as held by the Hon'ble Supreme Court in Raja Narayanlal Bansilal vs Maneck Phiroz Mistry, to claim the immunity from being self-incriminated, there must exist a formal accusation against the person and mere general inquiry and investigation don't form grounds for the same.

These safeguards provided under Article 20 are essential components of a fair and just legal system. They uphold the principles of fairness, protection against self-incrimination, and the prevention of arbitrary or excessive punishment. It's important to note that these protections are applicable in criminal proceedings and serve as a shield against certain violations of individual rights. However, reasonable restrictions and limitations can be imposed in the interests of public order, security of the State, or the proper administration of justice. References IndianKanoonBlog IpleadersLawctopusConstitutionofIndia.net